

CODE OF CIVIL PROCEDURE, 1908

Section 11. Res Judicata

No Court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit...

Order XXXIX, Rule 1. Cases in which temporary injunction may be granted

Where in any suit it is proved by affidavit or otherwise- (a) that any property in dispute in a suit is in danger of being wasted, damaged, or alienated by any party to the suit, or wrongfully sold in execution of a decree, the Court may by order grant a temporary injunction to restrain such act...